HILCHOT PESAH - SHULHAN ARUKH

Erev Pesah: Hames Timeline & Shabbat Immediately Preceding Pesah

Hilchot Pesah Siman 443–444

Recap of Previous Classes

Class	Simanim	Topics Covered
Class 1	429–432	30 days before Pesach; month of Nisan; Shabbat HaGadol; Bedikat Chametz timing; the bracha
Class 2	432–433	Why "al biur" not "al bedikat"; candle vs torch; where to check; high/low places; hole in walls; synagogues
Class 3	434–437	After Bedikah — bitul night and day; chametz timeline; appointing agents; missed bedikah; renting a house
Class 4	438–440	Mouse/child with chametz; kezayit threshold; kavua principle; non-Jew depositing chametz
Class 5	**443–444**	**Chametz on Erev Pesach after six hours; calculating the times; smelling chametz; deposited chametz; bartering; Erev Pesach on Shabbat**

Note: Siman 442 (ta'arovet chametz / mixtures) was skipped for now and will be revisited later.

Siman 443 – Chametz on Erev Pesach After Six Hours (דין חמץ בערב פסח לאחר שש שעות)

Contains 3 Se'ifim

Background: Three Torah Obligations Regarding Chametz

Before learning the se'ifim, it is essential to understand the three distinct Torah obligations regarding chametz:

#	Obligation	When It Applies	Source	Consequence
1	Eating chametz **on Pesach itself**	From nightfall of 15 Nisan	בל תאכל חמץ	**Karet** (spiritual excision)
2	Eating and benefiting from chametz **from chatzot on Erev Pesach**	From halachic midday of 14 Nisan	לא תאכל עליו חמץ	**Malkut** (lashes) — a negative prohibition (lav)
3	Positive mitzvah to **destroy chametz** (tashbitu)	Before chatzot on 14 Nisan	תשביתו שאור מבתיכם	Failure to fulfil a positive commandment

Eating and Benefit from Chatzot (De'oraita)

The Torah says that from the time the Korban Pesach could be sacrificed (chatzot on Erev Pesach), one may not eat chametz — "לא תאכל עליו חמץ." The majority of Rishonim, and the Shulchan Aruch, hold that this prohibition applies even nowadays when there is no Korban Pesach. The Gemara explains that when the Torah says "Lo Tochal" (do not eat), this generally includes a prohibition of hana'ah (benefit) as well. Therefore, from chatzot and onwards on Erev Pesach, it is a **Torah prohibition** to both eat and benefit from chametz, carrying the punishment of malkut (lashes).

There are some Rishonim who hold the prohibition is only de-rabbanan, but either way it is forbidden. The Shulchan Aruch follows the majority view that it is de'oraita.

Owning Chametz After Chatzot on Erev Pesach

Owning chametz after chatzot on Erev Pesach does **not** violate a negative prohibition. The Torah says "seven days you shall not have chametz in your possessions" — the prohibition of ownership applies only during the **seven days of Pesach itself**. However, if one still owns chametz after chatzot, one loses the opportunity to fulfil the **positive mitzvah of tashbitu** (destroying chametz at the correct time).

Summary: After chatzot on Erev Pesach — eating and benefit = Torah prohibition (lav); owning = missing a positive mitzvah but not violating a lav.

Se'if 1 – The Timeline of Prohibitions on Erev Pesach

Shulchan Aruch: Chametz from six hours (chatzot) onwards is forbidden to benefit from. The Chachamim forbade eating from two hours before chatzot (the beginning of the 5th hour). Although eating is forbidden during the 5th hour, one may still sell it, benefit from it, give it to animals, sell to a non-Jew, or give it to a non-Jew. When giving to animals, one must ensure they finish everything and nothing remains. From the beginning of the 6th hour (one hour before chatzot), they forbade benefit from it as well.

The Complete Timeline

Time Period	Eating	Benefit (selling, feeding animals, etc.)	Owning	Source
Before the 5th hour (until 4 halachic hours into the day)	✅ Permitted	✅ Permitted	✅ Permitted	—
5th hour (2 hours before chatzot)	❌ **Forbidden** (rabbinic)	✅ Permitted — can sell, feed animals, give to non-Jew	✅ Permitted	Chachamim's gezeirah for eating
6th hour (1 hour before chatzot)	❌ Forbidden	❌ **Forbidden** (rabbinic) — cannot sell, feed animals, etc.	✅ Still permitted (but should destroy — tashbitu)	Chachamim's gezeirah for benefit
From chatzot (halachic midday)	❌ **Forbidden** (Torah — lav/malkut)	❌ **Forbidden** (Torah — lav/malkut)	No lav, but failure to fulfil tashbitu	De'oraita: לא תאכל עליו חמץ
From nightfall of 15 Nisan (Pesach itself)	❌ **Forbidden** (Torah — **karet**)	❌ Forbidden (Torah)	❌ **Forbidden** (Torah — bal yera'eh / bal yimatzei)	Most severe level

Why Did the Chachamim Add Extra Hours?

In the days without clocks, people relied on the sun to tell the time. On a cloudy day, a person could easily miscalculate when chatzot is. Therefore:

- **For eating:** The Chachamim added **two hours** before chatzot — more severe caution, since eating could lead to karet if it continued into Pesach.
- **For benefit:** The Chachamim added **one hour** before chatzot — less severe, since benefit alone doesn't carry karet.

Selling Chametz After the Deadline

If you **did sell** chametz after the prohibited time (which you should not do — it's asur):

- The transaction **is valid** (chal).
- The chametz would **not** have the status of chametz she'avar alav ha-Pesach — you could use it after Pesach.
- But this should not be done deliberately.

Is a Gift Considered Hana'ah (Benefit)?

Yes — giving chametz as a gift is a form of benefit, because you build a relationship and there may be a mutual benefit later on. This is clear from the halachot of basar be-chalav (meat and milk): meat cooked with milk is asur be-hana'ah, and that includes even giving it as a gift.

However: Leaving chametz as **hefker** (ownerless, on the street for anyone to take) — this is **not** considered benefit and is permitted. There is no relationship being built when you simply abandon

something.

Practical example: With stam yeinam (non-kosher wine) — Sephardim hold it is asur be-hana'ah, so you can't sell it. Rather than pour it down the drain, simply leave it out on the street and let someone else take it.

The Rema: Calculating the Hours — Sha'ot Zemaniyot vs. Fixed Hours

General rule: We use **sha'ot zemaniyot** (seasonal/halachic hours) — dividing the daylight period into 12 equal parts.

The Terumat HaDeshen's Opinion

The Terumat HaDeshen (a major Ashkenazi posek, ~600 years ago) held a novel position based on the Gemara. The Gemara asks: why did the Chachamim add specifically two hours? It answers: because that's the maximum a person can get confused. The Terumat HaDeshen infers from this that "two hours" means two regular 60-minute hours — fixed, regardless of season. The same applies to the one hour for benefit.

Method	Calculation	When It's a Chumra	When It's a Kula
Sha'ot zemaniyot (main halacha)	Divide daylight into 12; count back from chatzot	Before the equinox (shorter days = shorter hours = earlier deadline)	After the equinox (longer days = longer hours = later deadline)
Terumat HaDeshen (fixed hours)	Simply subtract 120 minutes from chatzot for eating; 60 minutes for benefit	After the equinox (21 March) — comes out earlier than seasonal hours	Before the equinox — comes out later than seasonal hours

Practical Example (London, April)

- Chatzot is approximately 12:15 PM.
- **Terumat HaDeshen:** Latest time to eat = 10:15 AM. Latest time to sell = 11:15 AM.
- **Sha'ot zemaniyot:** Latest time to eat ≈ 10:35–10:40 AM (because seasonal hours are slightly longer than 60 minutes after the equinox).

This year, Pesach falls after the equinox (April), so the Terumat HaDeshen is a **chumra** — his times come out earlier.

Halacha

Everyone agrees the main halacha is sha'ot zemaniyot. However, the Terumat HaDeshen can be relied upon **bedi'avad and bishat hadchak** (in pressing circumstances) when it results in a **leniency** — e.g., if you're running late selling chametz, this may give you an extra 10–20 minutes. Furthermore, the further north you go, the greater the difference between the two calculations, even in April.

Note on Mechirat Chametz: You can actually do mechirat chametz yourself if you know how — you can sell chametz to your next-door non-Jewish neighbour directly if you know the proper procedure.

From When Do You Calculate the Hours?

Opinion	Calculation	Result
Dawn (alot hashachar) to nightfall (tzet hakochavim) — stringent	Longer day = each seasonal hour slightly shorter = earlier deadline	This is what we follow in the first instance
Sunrise (netz) to sunset (shkiyah) — lenient	Shorter day = each seasonal hour slightly longer = later deadline	United Synagogue calendar uses this; can be relied upon bedi'avad

- The difference can be **20–30 minutes** — significant for families with children who need to eat.
- In the first instance, calculate from **dawn to nightfall** (the more stringent opinion). Bedi'avad, one can rely on sunrise to sunset.
- Note: Since this relates to a safek de'oraita (the Torah prohibition begins at chatzot, and the rabbinic buffer protects against violating it), we are stringent in the first instance.
- The Federation calendar uses the more stringent opinion, which is why you may find discrepancies between different community calendars.

Smelling Chametz on Pesach

Question: Can you intentionally walk past a bakery on Pesach and smell the bread?

Background:

- The prohibition of benefit from chametz applies to **all chametz** — not just your own. The Torah says chametz shouldn't be eaten, not "your chametz."
- There is an opinion in the Rema (Siman 216) that one says a bracha on the smell of fresh bread — implying smell is something substantial.
- **Biur Halacha** adds: unlike treif food (which you'd never eat, so smelling is fine), chametz is food that is normally kosher during the year — you don't have the same repulsion for it, and smelling it may tempt you to eat it.

Halacha (consensus of poskim, including Sephardi poskim):

Scenario	Permitted?
Intentionally walking past a bakery to smell the bread	❌ **Forbidden** — potentially asur de'oraita
Intentionally breathing in deeply while passing	❌ **Forbidden**
Walking past normally and a **waft reaches you** unintentionally	✅ **Permitted** — no need to block your nose
Taking a **deliberate detour** to pass the bakery for the smell	❌ **Forbidden**

Distinction from non-kosher food: There is no prohibition to smell treif food generally (e.g., walking past McDonald's is fine). But you cannot smell something that is **asur be-hana'ah**, like basar be-chalav (meat cooked with milk) — or chametz during Pesach.

Se'if 2 – A Jew's Chametz Deposited with You

Shulchan Aruch: If a Jewish person left chametz in your care and didn't return:

- **If you can communicate:** Contact them and ask what to do.
- **If you cannot communicate:** Wait until the 5th hour (one hour left to sell). If no one has come, **you may sell it** — even though you weren't given permission to sell.
- **Why?** This is **meshiv aveidah** (returning lost property) — in one hour, this chametz will be permanently worthless (asur be-hana'ah forever). By selling it, you are saving the depositor's property.
- If selling isn't possible or time is too tight, you can sell even earlier.
- **If you could not sell it:** You must **destroy it** by the end of the 5th hour, even though it's not yours.
- **Why destroy someone else's property?** Two reasons: (a) The mitzvah of tashbitu from the Torah applies. (b) If the depositor didn't do bitul, he will be violating a Torah prohibition of owning chametz on Pesach. You have a duty to save him from transgression.

Liability for Not Selling

If you had the opportunity to sell the chametz and were lazy or negligent, and then had to destroy it — some poskim hold you bear **financial responsibility** for the loss (as part of your duty of care as a custodian). This is a minority opinion and considered a weak argument, but an interesting side discussion in Choshen Mishpat.

Se'if 3 – Bartering Chametz After the Prohibited Time

Shulchan Aruch: If someone used chametz to barter/buy something after the prohibited time (which is asur — a violation):

- The item received in exchange **is permitted** — the prohibition does not transfer to the bartered item.
- Some authorities say: for the person who did it, it's **forbidden as a penalty** (kenas). But the main halacha is that the item itself is permitted.

Siman 444 – When Erev Pesach Falls on Shabbat (ערב פסח שחל בשבת)

Partially covered — continuation next week

Se'if 1 – Bedikat Chametz on Thursday Night

Shulchan Aruch: When the 14th of Nisan falls on Shabbat:

- Bedikat Chametz is done on **Thursday night** (the night of the 13th) — the Chachamim instituted it on this night.
- All the regular halachot of Bedikat Chametz apply — bracha, candle, searching properly, etc.
- All chametz must be **destroyed before Shabbat** (i.e., on Friday). The Shulchan Aruch says "before Shabbat" — even late Friday afternoon is fine, since the prohibition of owning chametz only begins on Shabbat after the 5th hour.
- You leave aside chametz for **two meals only** — Friday night and Shabbat morning.

What If You Missed Thursday Night?

As we learned previously, if you didn't do Bedikat Chametz on the night of the 13th, you would do it during the day on the 13th (i.e., Erev Shabbat / Friday). If you missed that too, you could theoretically do Bedikat Chametz on Shabbat itself.

Why Only Two Meals?

- **Friday night:** Mitzvah of Seudat Shabbat — use chametz (or see alternatives below).
- **Shabbat morning:** Mitzvah of Seudat Shabbat — use chametz (or alternatives).
- **Seudah Shlishit:** Cannot use chametz — it's already after the prohibited time on Shabbat afternoon. Cannot use regular matzah — prohibited on Erev Pesach. Must use **matzah ashirah** (Sephardim) or alternatives (Ashkenazim).

The Prohibition of Eating Matzah on Erev Pesach

Gemara: כל האוכל מצה בערב פסח כבועל ארוסתו בבית חמיו — "One who eats matzah on Erev Pesach is like one who has relations with his fiancée in his father-in-law's house" (i.e., before the wedding).

- This is an **issur de-rabbanan** — you must come to the Seder with appetite and excitement for the matzah.
- **Important:** The halakha is that there is **no prohibition** from a month before, or from Rosh Chodesh Nisan — those are customs only. The actual prohibition is specifically on Erev Pesach.
- The specific expression used — fiancée, not just any prohibition — has halachic ramifications (see matzah mevushelet section below).

Scope of the Prohibition: When Does "Erev Pesach" Begin?

Opinion	Scope	Who Follows
Most poskim	The entire day of Erev Pesach (from the morning of 14 Nisan)	Majority
Magen Avraham	Only during the **daytime** — the night before (Friday night) is not yet "Erev Pesach"	Chabad

The Magen Avraham's novel leniency means that one could eat regular matzah on Friday night, and then only switch to chametz or alternatives for Shabbat morning.

What Is Matzah Ashirah (מצה עשירה)?

Definition: Matzah baked with **fruit juice** instead of water.

Property	Detail
Ingredients	Flour + **100% pure fruit juice** (no water at all)
Chametz status	**Not chametz** — flour only becomes chametz when mixed with water
Matzah status	**Not valid matzah** for the Seder — matzah must be made from something that *could* become chametz
Rising	Permitted to rise beyond 18 minutes (since fruit juice doesn't cause chametz)
Why called "rich"	It's bigger/broader because of the extra rising time — just as rice can rise because it's not chametz, so flour with pure fruit juice can rise

Important: Matzah ashirah packages clearly state it cannot be used for Seder night, as one does not fulfil the mitzvah of eating matzah with it.

The Ashkenazi Problem

Rama: The Ashkenazi custom is **not to eat matzah ashirah** on Pesach at all.

Concern: The fruit juice may contain some water — especially modern concentrates from supermarkets, which often contain added water. If any water is present, the mixture would become full chametz.

Consequence for Seudah Shlishit: Ashkenazim cannot use chametz (too late), matzah (Erev Pesach prohibition), or matzah ashirah. Their options are limited to: meat, fish, fruit, or cakes made from matzah meal. They can rely on the four opinions for fulfilling Seudah Shlishit that we learned previously (Siman 289): bread, mezonot, meat and fish, or even fruit.

The Bracha Problem with Matzah Ashirah

Matzah ashirah has the status of **pat haba'ah be-kisnin** (similar to cake/pastry) — normally mezonot, not hamotzi. Can you fulfil Seudat Shabbat (which requires lechem/bread) with something that's mezonot?

Answer: Some poskim argue that if you eat a **significant amount** (shiur kvi'at seudah), it becomes hamotzi. Others argue that since there's nothing else available, matzah ashirah is the "bread of the hour" — similar to how cracker matzah becomes hamotzi on Pesach itself because it's the only bread available. But this is debatable.

Note on pat haba'ah be-kisnin: One interpretation is that it refers to something that is "koses" — crunchy, requiring chewing and crushing. This is why cracker matzah (which is crunchy) is mezonot during the year according to many opinions, while soft hand-made matzah (like the kind made by Dan David in Hendon, or widely available in Israel) is hamotzi year-round because it has the texture of real bread.

The Best Practical Solution: Matzah Mevushelet (Boiled/Fried Matzah)

Chacham Ovadia Yosef strongly advocated this approach. The **Aruch HaShulchan** (Baruch Epstein) writes this for Ashkenazim as well.

The Principle

The Gemara's prohibition of matzah on Erev Pesach applies to matzah you would use to **fulfil the mitzvah at the Seder**. The specific expression — "like one who has relations with his fiancée" — implies: you can't

wait a few hours for something you'll be having tonight. If you **can't** fulfil the mitzvah with that matzah in a few hours' time, then it's not part of the prohibition.

Halacha: If matzah is baked and then **boiled or fried**, bishul (cooking) overrides afiyah (baking) — it loses its status as "baked matzah" and **cannot fulfil the mitzvah** of eating matzah at the Seder. Therefore, it is **not prohibited** on Erev Pesach.

Source of the principle: This is the same halacha that proves bishul achar afiyah (cooking after baking) changes the status of food — which is relevant in Hilchot Shabbat regarding the question of ein bishul achar bishul. If you bake matzah and then boil it in soup, it is no longer "baked matzah" — proof that bishul overrides afiyah. This means that on Pesach night itself, if you put baked matzah into soup (during Shulchan Orech, later in the Seder), you have **not** fulfilled the mitzvah of matzah with the soup-soaked piece — everyone agrees on this.

How to Prepare

1. **Before Shabbat (Friday):** Take regular matzah.
2. **Boil it** in soup/water or **fry it** (e.g., dip in egg and fry) — ensure it is properly cooked/fried so it has the halachic status of being cooked.
3. **Keep it intact** — if it crumbles into small pieces, there are issues with lechem mishneh and its bread status.
4. Use this for **all three Shabbat meals** — Friday night, Shabbat morning, and Seudah Shlishit.

Advantages

Advantage	Detail
Works for **all three meals**	No need for chametz at all — eliminates the entire problem of destroying chametz on Shabbat
Use **Pesach dishes** from Friday night	Everything is already Pesach-ready; no last-minute switching
No chametz destruction issues on Shabbat	No flushing bread down toilets; no carrying without an eruv
Both Sephardim and Ashkenazim can rely on this	Aruch HaShulchan writes this for Ashkenazim; Chacham Ovadia for Sephardim
No bracha issues	It's still bread-like enough for hamotzi if kept intact

Note on Ashkenazi gebrochts: Sephardim do not hold of gebrochts (concern about matzah + water becoming chametz). The matzah mevushelet approach does not pose a gebrochts concern since the matzah is being prepared **before Pesach** — there's no issue of gebrochts before Pesach begins.

The Problems with Using Real Chametz on Shabbat

If you do use chametz for Friday night and Shabbat morning, you face significant practical difficulties:

- **Destroying chametz on Shabbat:** How do you get rid of the remaining crumbs and bread? You can't burn it, and you can't carry it outside without an eruv.

- **Flushing down the toilet:** One of the few available options, but uncomfortable — especially with large families and lots of children where you can't precisely measure how much bread is needed.
- **Switching dishes:** You'd have to use non-Pesach dishes for chametz meals and then switch to Pesach dishes mid-Shabbat.

This is why the matzah mevushelet approach is recommended — it avoids all of these complications.

Seudah Shlishit Timing

- Seudah Shlishit on Erev Pesach must be eaten **before the 10th hour** of the day (i.e., two halachic hours before the end of the day).
- **Reason:** You need to come to the Seder hungry and with appetite for the matzah.
- **The Kabbalists** are particular about praying Mincha before Seudah Shlishit. On this Shabbat, that is nearly impossible — Shacharit and Musaf take up the morning, and one needs to eat and dispose of chametz by ~10:30 AM. The poskim say it is **fine to have Seudah Shlishit before Mincha** in this case.

Early Shacharit This Shabbat

- The standard Shabbat morning service in many communities finishes at 11:30 or 12:00 — far too late this year.
- One needs to finish eating chametz and destroy any remaining chametz by the end of the 5th hour (approximately **10:30 AM** in London).
- Therefore, communities must schedule **early Shacharit and Musaf** so that people can get home, have their Shabbat morning meal, and destroy remaining chametz in time.
- Even if using matzah mevushelet (no chametz at all), early services are still advisable for the community's sake, since not everyone will have prepared this way.

Practical Schedule: Erev Pesach on Shabbat (This Year — 5785 / 2025)

Time	Activity
Thursday night	Bedikat Chametz (with bracha, candle — all regular halachot)
Friday morning/afternoon	Destroy/burn remaining chametz (that you won't need for Shabbat)
Friday	Prepare matzah mevushelet (boiled/fried matzah) for all Shabbat meals. Set out Pesach dishes.
Friday night	Seudat Shabbat with matzah mevushelet (or chametz, if preferred) + Pesach food
Shabbat morning	**Early Shacharit + Musaf** — must finish in time to eat and dispose of chametz before the deadline (~10:30 AM). If using matzah mevushelet: no chametz issues.
By end of 5th hour (~10:30 AM)	All chametz must be eaten or destroyed. Do Bitul Chametz (daytime formula).
Shabbat afternoon (before 10th hour)	Seudah Shlishit — matzah mevushelet, matzah ashirah (Sephardim), or meat/fish/fruit
Shabbat afternoon	Mincha
Motzei Shabbat	Pesach begins — Seder night

Summary of Key Halachot

Siman:Se'if	Key Takeaways
443:1	Three Torah obligations: eating on Pesach (karet), eating/benefit after chatzot on Erev Pesach (malkut), and tashbitu (positive mitzvah to destroy). Chachamim added 2 hours for eating, 1 hour for benefit. Owning chametz after chatzot on Erev Pesach is not a lav — only during the 7 days.
443:1 (times)	Use sha'ot zemaniyot calculated from dawn to nightfall (stringent). Terumat HaDeshen (fixed 60-minute hours) can be relied upon bedi'avad. United Synagogue calendar uses the more lenient netz-to-shkiyah; Federation calendar uses the stringent opinion. Difference can be 20–30 minutes.
443:1 (smell)	Intentionally smelling chametz on Pesach is forbidden — potentially de'oraita. Unintentional wafts are fine. Distinguished from smelling treif food (which is permitted).
443:1 (sale after deadline)	Sale after deadline is asur but valid (chal). Chametz would not be classified as chametz she'avar alav ha-Pesach. Giving a gift = hana'ah. Leaving as hefker ≠ hana'ah.
443:2	Jewish person's chametz deposited with you: contact them if possible. If not, sell it in the 5th hour (meshiv aveidah). If you can't sell, destroy it — to save the depositor from violating a Torah prohibition.
443:3	Bartering chametz after the prohibited time: the item received is permitted (prohibition doesn't transfer). Some say a kenas applies to the person who did it.
444:1	Erev Pesach on Shabbat: Bedikah on Thursday night. Destroy chametz on Friday. Leave food for two meals only. Seudah Shlishit cannot be chametz or matzah.
444 (matzah on E"P)	Matzah is forbidden on Erev Pesach (de-rabbanan). Magen Avraham: only during the day, not the preceding night. Most poskim: entire day.
444 (matzah ashirah)	Flour + 100% fruit juice. Not chametz, not matzah. Ashkenazim don't eat it on Pesach (concern about water content). Bracha issues (pat haba'ah be-kisnin / mezonot).
444 (matzah mevushelet)	Best solution: boiled or fried matzah. Bishul overrides afiyah — loses matzah status, so not prohibited on Erev Pesach. Can be used for all three Shabbat meals. Recommended for both Sephardim and Ashkenazim.
444 (seudah shlishit)	Must eat before the 10th hour. OK to have before Mincha on this Shabbat. Early Shacharit required this year.

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